

MEMORANDA

OF

DECISIONS RENDERED DURING THE PERIOD EMBRACED IN THIS VOLUME

[132 NE3d 1093, 109 NYS3d 213]

LA NONA JEAN SALINAS, Appellant, v WORLD HOUSEWARE PRODUCING CO., LTD., et al., Respondents.

Decided September 12, 2019

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered November 20, 2018. The Appellate Division affirmed an order of the Supreme Court, New York County (Anil C. Singh, J.; op 2017 NY Slip Op 30585[U] [2017]), which had granted defendants' motions for summary judgment dismissing the complaint.

Salinas v World Houseware Producing Co., Ltd., 166 AD3d 493, reversed.

HEADNOTE

Judgments — Summary Judgment

The courts below erred in granting defendants' motions for summary judgment, insofar as plaintiff raised genuine issues of fact on the element of causation. Although plaintiff's deposition testimony partially contradicted the factual conclusions reached by her expert witnesses, the expert opinions were based upon other record evidence and were neither speculative nor conclusory.

APPEARANCES OF COUNSEL

Bandas Law Firm, P.C., Corpus Christi, Texas (*Robert Clore*, of the Texas bar, admitted pro hac vice, of counsel), and *Sanders, Sanders, Block, Woycik, Viener & Grossman, P.C.*, Mineola (*Michael Villeck* of counsel), for appellant.

Lynch Rowin LLP, White Plains (*Thomas P. Lynch* of counsel), for World Houseware Producing Co., Ltd., respondent.

Russo & Toner, LLP, New York City (*Theresa C. Villani* of counsel), for Josie Accessories, Inc., respondent.

Marshall Dennehey Warner Coleman & Goggin, New York City (*Adam C. Calvert* of counsel), for Dolgencorp of Texas, Inc., respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be reversed, with costs, and the case remitted to Supreme Court for further proceedings in accordance with this memorandum.

The courts below erred in granting defendants' motions for summary judgment on the basis that plaintiff failed to raise a triable issue of fact sufficient to defeat the motions. Although the plaintiff's deposition testimony partially contradicted the factual conclusions reached by her expert witnesses, the expert opinions were based upon other record evidence and were neither speculative nor conclusory. Insofar as plaintiff raised genuine issues of fact on the element of causation, summary judgment should not have been granted on that ground (*see Vega v Restani Constr. Corp.*, 18 NY3d 499, 503 [2012]; *see generally Skelka v Metropolitan Tr. Auth.*, 76 AD2d 492, 497-498 [2d Dept 1980], *lv denied* 51 NY2d 709 [1980], *lv dismissed* 51 NY2d 1008 [1980]). We remit for Supreme Court to consider the alternative grounds for summary judgment defendants raised in their motions and neither Supreme Court nor the Appellate Division reached.

Judges RIVERA, STEIN, FAHEY and WILSON concur; Chief Judge DiFIORE and Judges GARCIA and FEINMAN dissent and vote to affirm for reasons stated in the Appellate Division memorandum decision (*Salinas v World Houseware Producing Co., Ltd.*, 166 AD3d 493 [1st Dept 2018]).

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order reversed, with costs, and case remitted to Supreme Court, New York County, for further proceedings in accordance with the memorandum herein.
